

limited to any creditors with security interests in any of the subject personal property, might have.

For these reasons, parties are to appear for hearing as scheduled.

JAIME ANDUJO vs. GENERAL MOTORS, LLC
Case No. CU23-00155

Plaintiff's Motion for Attorneys' Fees

TENTATIVE RULING

Plaintiff JAIME ANDUJO moves for an award of attorneys' fees and costs following settlement of this action brought under the Song-Beverly Consumer Warranty Act (the "Act" or "lemon law") against Defendant GENERAL MOTORS, LLC.

Timeliness of Fee Motion. A prevailing buyer under the lemon law shall be allowed to recover attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the prosecution of his action. (Civ. Code, § 1794, subd. (d).) California Rules of Court, Rule 3.1702 requires a motion for attorneys' fees to be filed and served within the time for filing a notice of appeal, which is the sooner of 180 days from entry of judgment or 60 days from service of notice of entry of judgment. If a case ends in a dismissal then the 180-day deadline controls and begins to run from after entry of the order of dismissal. (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781.)

This case was dismissed on February 3, 2026. Plaintiffs' motion, filed and served by February 23, 2026, is timely.

Analysis of Fee Award. When awarding required fees to a lemon law plaintiff a court must make an initial determination of the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the charge for the time are reasonable. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507 (*Hanna*).) These circumstances include, but are not limited to, the complexity of the case, procedural demands, skill exhibited, and results achieved. (*Ibid.*) If the time expended or the charge for that time are not reasonable under all the circumstances the court must take this into account and award a lesser amount of fees. (*Ibid.*) The prevailing buyer has the burden of showing that the fees incurred were allowable, reasonably necessary, and reasonable in amount. (*Ibid.*) A reasonable hourly rate is one that fits with prevailing rates for like work in the same area. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) This "lodestar" method of fee award calculation vests discretion in the trial court to decide which hours are reasonably spent on litigation and what hourly rates should be used. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) This is because a trial judge is the best judge of the value of professional services rendered in the trial court. (*Goglin v. BMW of North*

America, LLC (2016) 4 Cal.App.5th 462, 470.) The court may also apply a multiplier to increase or decrease the initial “hours times rate” lodestar figure depending on the novelty or difficulty of questions the case presented, the skill displayed in presenting the case, the extent to which the case precluded other employment for the attorneys, and the contingent nature of the fee award. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) However, the trial court may not tie the fee award to the amount of the plaintiff’s recovery in an action under the Act. (*Hanna* at p. 510.)

A prevailing buyer may also recover his costs. (Civ. Code, § 1794, subd. (d).)

Defendant GM has not contested the hourly billing rates.

The Court finds that the time spent on the following tasks are unreasonable and warrant striking. The Court finds that the tasks at issue are not new or complex.

1. Prepared Plaintiff’s Responses to GM’s Discovery Requests – July 10, 11, 2023: The Court strikes 1.4 hours at \$525 per hour.
2. Motion to Compel Deposition – August 24, 25; October 26; November 1, 7, 8, 2023. The Court strikes 6 hours at \$525 per hour.
3. Motions to Compel Further Responses to FROGS, RFPs and SROGs – August 25, 28, 2023; September 22, 26, 2023; November 27, 28, 2023, December 4, 5, 2023. The Court strikes 7.6 hours at \$525 per hour.
4. Motion to Exclude Expert and Ex Parte Application in Connection Therewith – March 18, 24, 26, 2025: The Court strikes 4.7 hours at \$525 per hour.
5. Drafting Trial Documents – March 28, April 1, 2025; August 21, 2025: The Court strikes 3.4 hours at \$525 per hour.
6. Attorney’s Fee motion and anticipated time: The Court strikes 12.6 hours at \$525 per hour.

In total, the Court strikes 35.7 hours at \$525 per hour for a reduction of \$18,742.50.

The court finds Plaintiff’s claimed costs reasonable, with one exception: Plaintiff claims \$550 for a court reporter for an unnamed purpose.

The court finds that this was a straightforward and common action under the Act that does not warrant application of a multiplier.

Conclusion. Plaintiff’s motion is granted as follows:

Attorneys fees in the amount of \$39,345.50.

Plaintiff is awarded \$4,508.46 in costs.

AMMAAR MOTORS, INC. vs. ZULFIGAR ALI SHIRAZE; ET AL.
Case No. CU23-03284

Motion for Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR to address continuing the motion to a date after the two motions to intervene, currently scheduled for September 29, 2026, are heard.

As explained in *Singer Co. v. Superior Court* (1986) 179 Cal.App.3d 875:

“Failure to bring into the good faith settlement determination any likely defendant as a necessary party will have the usual effect -- the judgment cannot bind the absent party. (See [Kraus v. Willow Park Public Golf Course](#) (1977) 73 Cal.App.3d 354, 368 [140 Cal.Rptr. 744].)” *Id.* at 892.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant's Motion for Sanctions for Spoilation of Evidence

TENTATIVE RULING

On the Court's own motion, the hearing on Defendant's Motion for Sanctions for Spoilation of Evidence is continued to July 31, 2026 at 9:00 a.m. in Department Seven.

AGUSTIN AYALA REYNOSO vs. MARIE ALICIA ELLIS
Case No. CU25-01144

Defendant's Motion to Vacate Dismissal

TENTATIVE RULING

Defendant MARIE ALICIA ELLIS moves to vacate the dismissal of this case entered November 20, 2025 pursuant to Code of Civil Procedure section 473. The dismissal followed settlement of Plaintiff AGUSTIN AYALA REYNOSO's claims against Defendant related to an automobile collision on May 3, 2024 at Mare Island Way and Harbor Way in Vallejo. Defendant asserts that, due to excusable mistake or neglect, her counsel retained for purposes of asserting her own claims for injury against Plaintiff related to